

PERFORMANCE WORK STATEMENT

FOR

**Advisory Services for Nursery Crop Insurance
Program for Subtropical and Temperate Plants**

Revision 0

2/27/2026

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1 INTRODUCTION

The U.S. Department of Agriculture (USDA) Federal Crop Insurance Corporation (FCIC)/Risk Management Agency (RMA) requests services in an advisory capacity for the Nursery Value Select Pilot Crop Insurance Program for subtropical and temperate plants.

1.1 Mission

USDA is a cabinet-level Federal agency with a vision to provide economic opportunity through innovation, helping rural America to thrive; to promote agriculture production that better nourishes Americans while also helping feed others throughout the world; and to preserve our Nation's natural resources through conservation, restored forests, improved watersheds, and healthy private working lands.

FCIC/RMA:

RMA operates and manages FCIC. FCIC is a wholly owned government corporation established February 16, 1938, by the Federal Crop Insurance Act (7 U.S.C. 1501) and amended by the following:

- Federal Crop Insurance Act of 1980
- Federal Crop Insurance Reform and Department of Agriculture Reauthorization Act of 1994
- Federal Agriculture Improvement and Reform Act of 1996 (established RMA)
- Agriculture Research, Extension & Education Reform Act of 1998
- Agriculture, Rural Development, Food & Drug Administration, & Related Agencies Appropriations Act of 1999
- Agriculture Risk Protection Act of 2000
- Food, Conservation, and Energy Act of 2008
- Agricultural Act of 2014
- The Agriculture Improvement Act of 2018
- Additional Supplemental Appropriations for Disaster Relief Act, 2019
- Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2021

RMA serves America's agricultural producers through effective, market-based risk management tools to strengthen the economic stability of agricultural producers and rural communities. RMA is committed to increasing the availability and effectiveness of Federal crop insurance as a risk management tool.

FCIC promotes the economic stability of agriculture through a sound system of crop insurance and providing the means for the research and experience helpful in devising and establishing such insurance. FCIC provides crop insurance and risk management strategies to American producers. Private sector insurance providers, approved by FCIC, sell and service the policies. RMA and FCIC develop and/or approves premium rates, administers the premium and expense subsidies, approves and supports products, and reinsures the Approved Insurance Providers

(AIP). In addition, RMA sponsors educational programs and seminars on risk management.

1.2 Background

The Nursery Value Select (NVS) pilot crop insurance program provides coverage to wholesale nurseries producing field grown and containerized plants in every state and county across the nation. Knowledge pertaining to the wide range of plants, trees, bushes, etc., eligible for coverage under NVS is an important part of the success of this program.

1.3 Scope

This Performance Work Statement (PWS) provides the framework for obtaining expert technical assistance on various NVS pilot crop insurance program issues related to field grown and containerized plant production practices, plant classification and taxonomy, hardiness zone insurability limitations, cold protection requirements, risk assessment, and plant marketing.

2 GENERAL REQUIREMENTS

This section describes the general requirements for this effort.

2.1 Non-Personal Services

The Government shall neither supervise Contractor employees nor control the method by which the Contractor performs the required tasks. Under no circumstances shall the Government assign tasks to, or prepare work schedules for, individual Contractor employees, except for the site lead. It shall be the responsibility of the Contractor to manage its employees and to guard against any actions that are of the nature of personal services or give the perception of personal services. If the Contractor believes that any actions constitute, or are perceived to constitute personal services, it shall be the Contractor's responsibility to notify the Contracting Officer (CO), in writing, immediately.

2.2 Key Personnel

The Contractor agrees to assign to the contract, those key persons whose resumes were submitted as required to fill the terms of the contract. No substitution or addition of personnel will be made except in accordance with this clause.

Should it become necessary for the Contractor to substitute personnel for any reason, the CO and Contracting Officer's Representative (COR) must be notified, in writing, with a proposed plan of action. The CO and COR will review the request and promptly notify the Contractor of approval or disapproval.

If the CO determines that suitable and timely replacement of key personnel, who have been reassigned, terminated, or have otherwise become unavailable to perform under the contract, is not reasonably forthcoming, or that a resultant reduction of productive effort would impair the

successful completion of the contract, the contract may be terminated by the CO for default or for the convenience of the Government, as appropriate. Additionally, and at the discretion of the CO, should the Contractor be found at fault for the condition, the contract price may be equitably adjusted (downward) to compensate the Government for any delay, loss, or damage due to the Contractor's action.

2.3 Location and Hours of Work

Work under this contract is performed at the Contractor's offices or in the field.

2.4 Travel

Travel under this contract, including all 50 states, possessions and/or territories, may be required if and when the need arises. The Contractor is responsible for making their own travel reservations and paying the associated costs. All travel requirements (e.g., plans, agenda, itinerary, or dates) shall be pre-approved by the Government and is on a strictly cost reimbursable basis. Costs for travel shall be billed in accordance with the cost principles at Federal Acquisition Regulation section 31.205-46 "Travel Costs" and the Federal Travel Regulation.

The Contractor shall provide a trip report and supporting documentation with the invoice for reimbursement. Travel costs must be broken down by the individual traveler and documentation supporting the costs being invoiced must be attached and clearly indicate the traveler it is associated with. All travel costs shall be billed within 30 calendar days after travel is complete unless an approval for later billing is approved by the Contracting Officer. Failure to provide adequate documentation may result in denial of reimbursement. Local commuting costs are the responsibility of the Contractor. Travel is considered an other direct cost.

2.5 Invoicing

Invoices must be submitted electronically through the Invoice Processing Platform (IPP) system and in accordance with the payment clause(s) in the contract.

2.6 Identification of Contractor Personnel

Contractor employees, including subcontractors, who attend meetings, send emails, answer Government telephones or place calls, or work in situations where their actions could be construed as acts of Government officials, must clearly identify themselves as Contractor employees.

3 CONTRACTOR PERFORMANCE

This section describes the work that must be performed to achieve the required objectives, performance/delivery timing, and the associated performance standards (e.g., acceptable quality levels) that must be met for the service to be acceptable.

3.1 Performance Objectives/Tasks

The horticulture specialist will assist RMA personnel and other interested parties to provide advice on nursery issues related to subtropical and temperate plants in areas covered by the 10 RMA Regional Offices. The Contractor shall perform the following tasks as detailed below:

- (i) Advise, assist, and coordinate with RMA personnel and other interested parties on questions and issues related to nursery plant production practices, plant classification and taxonomy, hardiness zone limitations, storage and plant protection procedures and requirements, risk assessment, wholesale marketing, and nursery crop insurance procedures.
- (ii) Attend RMA and nursery industry meetings, as necessary.
- (iii) Aid and participate with RMA personnel in large claims, as necessary.
- (iv) Possess knowledge of the NVS pilot crop insurance program to advise and assist RMA in modifications to the nursery program.

3.2 Constraints

Contractor must possess sufficient expertise in the horticultural sciences to accurately assess and establish plant categories, hardiness zone limitations, and winter storage requirements for plants. Contractor must also possess the ability to advise RMA personnel on horticultural issues related to crop insurance coverage of plants.

4 SCHEDULE OF WORK

4.1 Places of Performance

Performance shall take place primarily at the Contractor's facilities.

4.2 Period of Performance

The period of performance is for one year. With four one-year options, which the Government is not obligated to exercise.

5 SPECIAL REQUIREMENTS

This section describes the special requirements that apply to this contract. The following subsections provide additional detail for each requirement.

5.1 Government Furnished Property, Equipment, Information, and/or Services

The Contractor may access RMA's public website at www.rma.usda.gov for information pertaining to existing crop policies, underwriting and loss adjustment procedures, data reporting

requirements, and other publicly accessible information. Any information not available through the website but is considered necessary may be requested through the COR.

RMA personnel knowledgeable about specific subjects or topics will be made available for consultation by telephone or electronic mail. The Contractor shall submit all resource requests to the COR.

5.2 Restrictions Against Disclosure

The Contractor agrees, in the performance of this contract, to keep all information contained in source documents or other media furnished by the Government in the strictest confidence. The Contractor also agrees not to publish or otherwise divulge such information in whole or in part, in any manner or form, nor to authorize or permit others to do so, taking such reasonable measures as are necessary to restrict access to such information while in the Contractor's possession, to those employees needing such information to perform the work provided herein (e.g., on a "need to know" basis). The Contractor shall to immediately notify the Contracting Officer, in writing, if the Contractor determines or has reason to suspect a breach of this requirement.

The Contractor agrees not to disclose any information concerning work under this contract to any persons or individual unless prior written approval is obtained from the Contracting Officer. The Contractor agrees to insert the substance of this clause in any consultant agreement or subcontract hereunder.

Performance of work may involve access to potentially sensitive information about governmental and landowner issues. All Contractor personnel shall comply with the terms of AGAR clause 452.224-70 (Confidentiality of Information), as well as provisions of the Privacy Act of 1974 (5 U.S.C. 552a). Additionally, the Contractor's personnel shall comply with privacy of personal information relating to agency programs in accordance with Section 1244 of Title II of the Farm Security and Rural Investment Act of 2002 (P.L. 107-171) and Section 1619 of Title I of the Food, Conservation, and Energy Act of 2008. The Contractor's employees shall not disclose contents of agency case files and/or records to anyone other than authorized United States Department of Agriculture employees without the express written consent of the Freedom of Information Act and Privacy Act Officer, through the Contracting Officer.

5.3 Organizational Conflicts of Interest

The Contractor acknowledges that it is familiar with Federal Acquisition Regulation (FAR) Subpart 9.5, Organizational and Consultant Conflicts of Interest, and agrees to avoid, neutralize or mitigate such conflicts of interest in accordance with the principles set forth in the FAR. If the performance would require the Contractor, including subcontractors, to provide services related to systems or projects with which the Contractor is already directly concerned, either by prime or subcontract, that would cause an organizational conflict of interest, the Contractor shall immediately notify the Contracting Officer, in writing, and not perform the work until direction is provided by the Contracting Officer.